



CHAPTER ix.

An Act for incorporating and conferring powers on the
Corbridge Gas Company. [24th June 1904.] A.D. 1904.

WHEREAS in the year one thousand eight hundred and sixty-three certain persons formed themselves into a gas company under the name of the Corbridge Gas Light Company Limited (in this Act referred to as "the limited company") for the purpose (inter alia) of lighting the town of Corbridge in the county of Northumberland and its vicinity with gas and to sell and dispose of coke and coal tar and other refuse and such company was duly registered with articles of association under the Companies Acts 1862 to 1867:

And whereas the share capital of the limited company consists of three thousand five hundred pounds divided into one thousand seven hundred and fifty shares of two pounds each and the whole of such shares have been subscribed and fully paid up:

And whereas the limited company have borrowed by the creation and issue of four per centum debenture stock the sum of seven hundred pounds:

And whereas the limited company have from time to time expended out of revenue various sums of money amounting in the aggregate to more than two thousand five hundred pounds upon the improvement and extension of their works and mains and other appliances for the manufacture storage and distribution of gas and other matters the expenditure on which is properly chargeable against capital but such sums have not been so charged:

And whereas it is reasonable that stock representing the said sum of two thousand five hundred pounds should be created and should be distributed rateably among the present shareholders of

A.D. 1904. — the limited company in the manner and under the conditions in this Act provided :

And whereas the limited company have acquired the lands described in the schedule to this Act and have erected gasworks thereon and are now supplying gas in the parishes of Corbridge Broomhaugh and Riding Mill in the county of Northumberland :

And whereas it is expedient that the limited company should be dissolved and reincorporated with further powers and that the limits of supply of the Company should be defined :

And whereas the demand for gas in the district supplied by the limited company has increased and is increasing and it is expedient that the Company incorporated by this Act should be empowered to maintain and continue and to extend and improve the gasworks of the limited company and that for such purposes and other the purposes of this Act the Company should be authorised to raise additional capital as by this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Corbridge Gas Act 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts are hereby incorporated with this Act namely :—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) ;

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts ;

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) ;

The Gasworks Clauses Acts 1847 and 1871 provided that section 13 of the former Act shall be read as if the words “ or any premises ” were inserted after the words “ private building.”

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

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Interpreta-
tion.

The expression "the Company" shall mean the Corbridge Gas Company incorporated by this Act;

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement and enlargement or extension thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively.

4. The limits of this Act shall be the parishes of Corbridge Aydon Aydon Castle Broomhaugh Styford Thornbrough Newton Bywell Broomley and Riding and such parts of the parish of Dilston lying to the east of the Devil's Water all in the county of Northumberland.

Limits of
Act.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who shall hereafter become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be and they are hereby united into a company for the purposes herein-after mentioned and shall be incorporated by the name of "The Corbridge Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

Incorporation of Com-
pany.

6. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may provide produce sell dispose of and deal in gas coke tar and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

General
purposes
Company.

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Present
property of
limited com-
pany vested
in Company
incorporated
by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in any wise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas-stoves fires cookers gasfittings lamp-posts syphons valves apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Memo-
randum and
articles of
association
of limited
company to
be void
without pre-
judice to
remedies for
antecedent
breaches
thereof.

8. Subject to the provisions of this Act the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such. But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum or articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Nothing to
affect pre-
vious rights
and liabili-
ties.

9. Except as is by this Act otherwise expressly provided every-thing before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not

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been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Contracts
prior to Act
to be binding.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Actions &c.
not to abate.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately

Trustees of
limited com-
pany to be
indemnified.

A.D. 1904. before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he must sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company
to satisfy
liabilities of
limited com-
pany.

13. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to pay-
ment of debts
owing before
passing of
Act.

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Certificates
&c. to remain
in force.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Books &c.
continued
evidence.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Officers to
continue
until re-
moved.

18. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the

salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

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19. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Present
registers of
members to
be continued.

20. The capital of the Company shall be sixteen thousand five hundred pounds and shall consist of—

Capital.

- (1) Capital stock of seven thousand pounds representing the ordinary share capital of the limited company (hereinafter called "capital stock A");
- (2) Capital stock of two thousand five hundred pounds representing the amount expended by the limited company out of revenue upon extensions and improvements (hereinafter called "capital stock B");

The above amounts of capital stock are in this Act called "the original capital" and shall be deemed to be fully paid up;

- (3) Seven thousand pounds in this Act called "the additional capital" which shall be raised in manner herein-after mentioned:

And the Company may convert into stock the whole or any part of the additional capital when fully paid up.

21. The original capital shall be divided among and vested in the several persons who immediately before the passing of this Act were the registered members of the limited company in proportion to their respective holdings in and in substitution for their shares in the limited company that is to say the capital stock A among the holders of the ordinary shares in the limited company in the proportion of four pounds stock for one such ordinary share of two pounds and the capital stock B among the holders of the ordinary shares in the limited company in proportion to their respective

Vesting of
stock in pre-
sent share-
holders.

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holdings in the limited company and every portion of stock so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the passing of this Act affected the share or shares for which the same is substituted and so as to give effect to and not revoke any deed or other instrument or any testamentary disposition of or affecting the same.

Company shall call in and cancel existing share certificates and issue new certificates in lieu thereof.

22. The Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof certificates under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificates of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

Transfer of capital stock.

23. Capital stock in the original capital shall be transferable in sums of one pound or multiples of one pound and sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include and apply to capital stock and the interest thereon as if such stock and interest had been expressly mentioned therein.

Power to Company to raise additional capital.

24. The Company may raise additional capital not exceeding in the whole seven thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such shares or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of seven thousand pounds.

Profits of Company limited.

25. Except as in this Act otherwise provided the profits of the Company to be divided among the stockholders and shareholders in any year shall not exceed the following rates (herein-after in this

Act referred to as "the standard rates of dividend") (that is to say) :— A.D. 1904.

On the capital stock A the rate of five pounds in respect of every one hundred pounds of such capital;

On the capital stock B the rate of five pounds in respect of every one hundred pounds of such capital; and

On the additional capital to be raised under the powers of this Act the rate of five pounds in respect of every one hundred pounds actually paid up of such capital whether issued as ordinary capital or preference capital.

26. In case in any half-year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of the standard rates of dividend on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class. Dividends on different classes of stock or shares to be paid proportionately.

27. Notwithstanding anything in this Act contained the Company shall when any shares or stock in the additional capital created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company. New shares or stock in additional capital to be offered by auction or tender.

28. It shall be one of the conditions of any sale of shares or stock portion of the additional capital under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money of capital sold to be paid within three months.

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Notice to be
given as to
sale of shares
or stock.

29. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerk of every district council whose district or any part of whose district is within the limits of the Company for the supply of gas and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of two consecutive weeks in one more local newspapers circulating within the limits of this Act.

Disposal of
shares or
stock not
sold by
auction or
tender.

30. When any shares or stock portion of the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Application
of premium
arising on
issue of
shares or
stock.

31. Any sum of money which shall arise from the issue of any such shares or stock portion of the additional capital by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as

herein-before provided shall for such purpose be reckoned as part of the paid-up capital. A.D. 1904.

32. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) and dividend on the ordinary capital of the Company at the authorised rates the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

If profits exceed amount limited excess may be invested and form an insurance fund.

33. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital (if any) of the Company and the dividend at the authorised rate on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Application of excess of profits over authorised rates of dividend.

34. Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the

Power to create a reserve fund out of dividends in excess of standard rates of dividend and application thereof.

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Power to borrow.

35. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the sum of seven hundred pounds already borrowed by the limited company) one third part of the amount of the additional capital by this Act authorised to be raised at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Saving for existing mortgages and bonds.

36. All mortgages bonds and debentures granted or issued by the limited company and subsisting at the date of the passing of this Act shall during the continuance of such mortgages bonds and debentures have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act.

For appointment of a receiver.

37. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being owing by the Company on mortgage.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

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Debenture
stock.

39. All moneys raised on mortgage by the Company under this Act and all moneys continued on mortgage of the undertaking and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rent-charge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on the mortgages or debenture stock.

Priority of
mortgages
and debenture
stock
over other
debts &c.

40. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

Application
of moneys.

41. The first ordinary meeting of the Company after the passing of this Act shall be held in the month of March one thousand nine hundred and five and the subsequent ordinary meetings of the Company shall be held in the month of March in every year or at such other time as shall be appointed for that purpose by an order of a general meeting of the Company.

First and
subsequent
ordinary
meetings.

42. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time more than seven nor less than five.

Number of
directors.

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Qualification
of directors.

43. The qualification of a director shall be the possession in his own right of shares or stock of the Company to the nominal amount of not less than one hundred pounds.

Quorum.

44. The quorum of a meeting of directors shall be three.

First and
subsequent
directors.

45. George Renwick Thomas Blandford Andrew Carr Thomas Turnbull William Kirsopp Inniss Thomas Fairless and George Creighton Charlton shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act. At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Auditors.

46. The auditors need not hold shares or stock in the Company.

Interim
dividend.

47. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the profits of the Company. Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the standard dividend.

Closing of
transfer
books pre-
vious to
declaring
interim
dividend.

48. It shall be lawful for the directors to close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days notice shall be given by advertisement in some newspaper published or circulating in the district within which the principal office of the Company is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the party

claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. A.D. 1904.

49. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

Books to be balanced to thirty-first December.

50. Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Powers as to construction and maintenance of gasworks &c.

51. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole three acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to purchase lands by agreement.

52.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture meters engines stoves ranges pipes burners and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

Power to supply gas-fittings &c. for heating and other purposes.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate

A.D. 1904. affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Dividend
dependent
on price
charged.

53. From and after the thirty-first day of December one thousand nine hundred and four the standard price to be charged by the Company for gas supplied by them shall be four shillings and twopence per thousand cubic feet within the parishes of Corbridge and Dilston (east of the Devil's Water) and five shillings per thousand cubic feet of gas supplied by them beyond the said parishes :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary share capital or stock as follows :—

In respect of any year during any part of which the price charged by the Company within the parishes of Corbridge and Dilston (east of the Devil's Water) shall have been one penny or part of a penny above the standard price of four shillings and twopence or the price charged by the Company elsewhere within their limits for the supply of gas shall have been one penny or part of a penny above the standard price of five shillings the dividend payable by the Company shall in respect of each penny or part of a penny by which either of the standard prices shall have been increased be reduced below the standard rate of dividend by two shillings and sixpence on every one hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Company within the parishes of Corbridge and Dilston (east of the Devil's Water) shall have been one penny or more below the standard price of four shillings and twopence and the price charged by the Company elsewhere within their limits for the supply of gas shall have been one penny or more below the standard price of five shillings the dividend payable by the Company may in respect of each penny by which the standard prices shall have been reduced be increased above the standard rate by two shillings and sixpence on every hundred pounds of ordinary paid-up capital and so in proportion for any fraction of one hundred pounds.

54. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case fifteen per centum and they may if they think fit allow discounts or rebates to large consumers upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Company and any of such consumers. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

A.D. 1904.
Discounts.

55. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Pressure of
gas.

56. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was caused by an unavoidable cause or accident. Provided that the want of sufficient funds shall not be held to be an unavoidable cause.

No penalty
in case of
unavoidable
cause.

57. The prescribed number of candles shall be not less than fourteen.

Quality of
gas.

58. Within six months from the passing of this Act if the same has not already been done a testing place shall be provided at the works of the Company.

Testing
place.

59. The prescribed burner shall be a Sugg's Argand burner for testing gas of the illuminating power of fourteen candles or any other burner or chimney approved for this purpose by the Board of Trade.

Burner.

A.D. 1904.

Company to
pay interest
on money
deposited as
security for
gas meter.

60. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Notice of
discontinu-
ance.

61. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to re-
fuse to sup-
ply persons
in debt for
other prop-
erty.

62. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

63. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

As to con-
struction and
placing of
pipes &c. be-
tween mains
and meters.

64. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper (once in each of two newspapers) circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company : A.D. 1904.

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building. The provisions of this subsection shall not apply to prepayment meters :

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

65. Twenty-four hours notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any

Gas consumers to give notice to Company before removing.

A.D. 1904. subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Power to lay pipes in streets not dedicated to public use.

66. The Company may on the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are respectively applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Company may contract with local authority &c. for supply in bulk.

67. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Copy of Act to be registered.

68. The Company shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and every director and manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty and every penalty under this Act shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Anti-fluctuators for gas engines.

69. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep

such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

A.D. 1904.

70. The Company may erect and maintain dwelling-houses for persons in their employ upon the lands for the time being belonging to or leased by the Company.

Dwelling-houses for persons in Company's employ.

71. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a provisional order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application.

Power to apply for a Provisional Order to supply electrical energy.

72. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1904.

The SCHEDULE referred to in the foregoing Act.

All that piece or parcel of land belonging to and now occupied by the existing gasworks of the limited company situate in the parish of Corbridge in the county of Northumberland and containing by admeasurement 0 acre 1 rood 28 perches or thereabouts bounded on the north by the North Eastern Railway on the south by an occupation road on the east by land belonging or reputed to belong to Farquhar Milne Laing and on the west by property belonging or reputed to belong to the Walker Fire Brick Company Limited.

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